

IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF:	)	CASE NO. 14-0361
	)	DIA NO. 17BS002
MICHELLE JOHNSON,	)	
License No. 001060	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
RESPONDENT	)	DECISION AND ORDER

On February 2, 2017, the Board conducted a hearing on the reinstatement request filed by Michelle Johnson (Respondent) at the Lucas State Office Building, Des Moines, Iowa. The hearing was open to the public at Respondent's request, pursuant to Iowa Code section 272C.6(1), and was recorded by a certified court reporter. The Respondent appeared and was represented by attorney Alexander Wonio. The state of Iowa was represented by Laura Steffensmeier, Assistant Attorney General. The following Board members were present for the hearing, Chairperson Erik Oostenink, MHC; Sarah Thomas, MFT; Donald Gilbert, MHC; Amy Crow Sunleaf, MHC; and Sherill Whisenand, public member. Administrative Law Judge Emily Kimes-Schwiesow assisted the Board in conducting the hearing and was instructed to prepare the Board's Decision in conformance with their deliberations.

THE RECORD

The record includes the Notice of Reinstatement Hearing, the testimony of Respondent, State Exhibits 1 through 6, and Respondent Exhibits A through C. A protective order was issued for Respondent's Exhibit C which includes confidential information.

FINDINGS OF FACT

1. On December 30, 2014, the Board received a complaint alleging mental health counselor Michelle Johnson (license no. 001060) had engaged in unethical conduct. Specifically, the complainant alleged Johnson had convinced a client to give her money and did not return the funds when requested. Police incident reports related to the complaint were submitted to the Board. (State Exhibit 1)
2. On August 13, 2015, the Board found probable cause to file a Notice of

Hearing and Statement of Charges against the Respondent. She was charged with being convicted of a crime related to the profession, failure to notify the Board of a criminal conviction within 30 days of the action, and engaging in unethical conduct, including but not limited to betrayal of a professional confidence and engaging in a professional conflict of interest. The charges were related to Respondent's May 5, 2015 guilty plea to theft in the third degree. The crime involved Respondent taking money from a client and not returning it when requested. (State Exhibit 2)

3. On February 4, 2016, the Board approved a Settlement Agreement and Final Order in which Respondent voluntarily surrendered her license to practice as a mental health counselor to resolve the pending disciplinary charges. (State Exhibit 3)

4. On December 29, 2016, Respondent filed an application for reinstatement with the Board. Notice of Reinstatement Hearing was issued on January 3, 2017 scheduling hearing for February 2, 2017. (State Exhibit 4, 5)

5. In support of her application for reinstatement, Respondent has submitted numerous letters of support from former colleagues, friends, acquaintances, and treatment providers. (Respondent Exhibit C) She also submitted documentation verifying completion of continuing education courses, including ethics courses, taken between 2013 and 2017. (Respondent Exhibits A, B)

6. Respondent testified at hearing and addressed her past violations. Respondent admitted that while working with a personality disorder client in 2013 she violated professional boundaries and began to experience her own dissociation. Respondent convinced the client to give her money to assist another client named "Cassie." The client delivered the money to Respondent on multiple occasions; at least once money was delivered to Respondent in a parking lot. "Cassie" did not exist, the Respondent made up this story to persuade the client to give her money. Respondent reported her intent was to assist the client in saving money. Respondent acknowledged having her own financial struggles at the time. She deposited the client's money into her own personal bank account. In December 2014, the client asked for the money back. Respondent lied to the client again and said the money had been stolen from her workplace. She was subsequently contacted by the West Des Moines police and ultimately admitted she had taken the money herself under false pretenses. Respondent delivered part of the funds to the police department immediately,

and subsequently returned the rest with assistance from family members.
(Respondent testimony)

7. Respondent entered a guilty plea to theft in the third degree and received a deferred judgment. She completed criminal probation in approximately four months. Since that time she has done some part-time work in marketing, but is otherwise unemployed. Her family assists her financially. (Respondent testimony)

8. Respondent described herself as too caring and explained that at the time of her violations work had become her life and identity. She was working long hours with a heavy caseload. She is now working on taking better care of herself. Respondent has a history of abuse and past paranoid behavior. She denies any substance abuse or gambling addiction issues. She is currently seeing a psychiatrist and reports a diagnosis of major depressive disorder and post-traumatic stress disorder. She has not undergone any comprehensive testing. Respondent currently sees a therapist once a week and indicated she will continue therapy as long as necessary. (Respondent testimony)

9. Respondent expressed a desire to return to work as a mental health counselor. She acknowledged that part-time work and supervision would be appropriate. Respondent hopes to work with depression and anxiety clients and steer away from client's suffering from personality disorders. (Respondent testimony)

CONCLUSIONS OF LAW

645 IAC 11.31 provides, in relevant part:

645-11.31(272C) Reinstatement.

11.31(1) Any person whose license to practice has been...suspended may apply to the board for reinstatement in accordance with the terms and conditions of the order of ... suspension,...

11.31(2) If the order of ... suspension did not establish terms and conditions upon which reinstatement might occur, or if the license was voluntarily surrendered, an initial application may not be made until one year has elapsed from the date of the order or the date of the voluntary surrender.

...

11.31(4) An application for reinstatement shall allege facts which, if established, will be sufficient to enable the board to determine that the basis for the ...suspension of the respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the respondent.

11.31(5) An order denying or granting reinstatement shall be based upon a decision which incorporates findings of fact and conclusions of law. The order shall be published as provided for in this chapter.

The issues before the Board are whether the basis for the surrender of Respondent's license no longer exists and whether reinstatement is in the public interest. In order to reinstate, the Board must be satisfied that the public will be protected and that Respondent is willing and able to comply with all of the statutes and rules governing her practice as a mental health counselor, including all ethical obligations. Based on this hearing record, the Board was unable to conclude that it is in the public interest for Respondent's license to be reinstated at this time.

As of the date of the hearing, Respondent has been without a license for nearly a year. She has completed criminal probation, sought treatment for her mental health issues, and has taken on additional continuing education regarding ethics. The Board commends the Respondent for these efforts. However, the record lacks any evidence of a comprehensive evaluation of the Respondent. The only verification regarding her diagnoses and current status is a brief letter from her counselor. The ethical violations in this case are egregious. Respondent testified credibly at hearing, but with a lack of specificity about her actions. The Board remains concerned about the Respondent's ability to face financial difficulties and work stress in the future. Respondent has not provided the Board with sufficient assurance that she would not violate the statutes and rules governing her professional practice if she is reinstated.

ORDER

IT IS THEREFORE ORDERED that the application for reinstatement filed by Michelle Johnson is hereby DENIED.

IT IS FURTHER ORDERED, pursuant to Iowa Code section 272C.6, that Respondent Michelle Johnson shall pay a \$75.00 hearing fee and \$90.00 in costs for the court reporter. The total of \$165.00 in fees and costs shall be paid within thirty (30) days of receipt of this decision.

IT IS FURTHER ORDERED that prior to filing another application for reinstatement, Respondent must:

1. Submit to a comprehensive evaluation with a Board approved evaluator. The evaluation shall include a review of the Statement of Charges, Settlement Agreement, and investigative file from this contested case, a personal interview with the Respondent, and any testing or other interviews deemed necessary by the evaluator. The evaluation must address Respondent's ability to safely practice as a mental health counselor and include evaluation of boundary issues as well as addictive behaviors. Verification of completion of the evaluation, the evaluation report, and any resulting recommendations must be provided to the Board.
2. Pay the \$75.00 hearing fee and \$90.00 court reporter costs in full.

Dated this 21st day of March, 2017.

Erik Oostenink, MHC

Erik Oostenink, MHC
Chairperson
Iowa Board of Behavioral Science

cc: Laura Steffensmeier, Assistant Attorney General

Judicial review of the Board's action may be sought in accordance with the terms of the Iowa Administrative Procedure Act. 645 IAC 11.29.